

disposition gives effect to the parties' written agreement while avoiding any identified risk of inconsistent adjudications.

CRC rule 3.1330 is satisfied:

Golden Star's reliance on California Rules of Court, rule 3.1330 does not resolve the formation question in its favor. The rule requires the arbitration provisions to be stated verbatim or a copy of the agreement to be attached and incorporated by reference. The moving papers quoted section 6.2 of the executed A101, which contains Golden Star's express arbitration selection, and attached the signed A101 itself. The moving papers also placed before the Court the A201-2017 provisions expressly identified in section 6.2. Rule 3.1330 does not require each incorporated Contract Document to be separately executed or physically attached to the signature document.

Here, the dispositive arbitration selection appears verbatim in section 6.2 of the executed A101: "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017." Rule 3.1330 provides no basis to disregard that written selection.

Cross-Defendant Jay Alan Su's Joinder to Defendant/Cross-Defendant Project X Developer Inc.'s Motion to Stay Proceedings and Compel Arbitration GRANTED.

The Court stays the pending action, to include Cross-Defendant J&Q Land Development Construction, Inc., to avoid inconsistent adjudication.

2.

| CASE #      | CASE NAME                                                                    | HEARING NAME                               |
|-------------|------------------------------------------------------------------------------|--------------------------------------------|
| CVPS2502853 | J & Q LAND DEVELOPMENT<br>CONSTRUCTION, INC. VS<br>PROJECT X DEVELOPER, INC. | HEARING ON MOTION TO<br>COMPEL ARBITRATION |

**Tentative Ruling:** Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability . . . Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

It is undisputed that Golden Star executed the AIA A101-2017 Standard Form of Agreement ("A101"). Nor does Golden Star dispute that section 6.2 of the signed A101 expressly selects "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017" as the method of binding dispute resolution. Golden Star nevertheless contends that no agreement to arbitrate exists because a separate copy of the A201-2017 General Conditions ("A201") was not attached to the execution package. However, that contention cannot be reconciled with the executed A101.

Golden Star's argument conflates the parties' agreement to arbitrate with the procedures governing the arbitration they selected. The agreement to arbitrate does not appear solely in an unattached A201. Golden Star selected arbitration in the signed A101 itself. Section 6.2 presents three alternatives for binding dispute resolution: arbitration, litigation, or another specified procedure. The parties selected "[a]rbitration pursuant to Section 15.4 of AIA Document A201-2017." They did not select litigation. (Su Deel., Ex. A, A101, § 6.2.)

The A101 separately incorporates the A201 through several clear and unequivocal provisions. The first page states that the A201 "is adopted in this document by reference." Article 1 provides that the Contract Documents form the parties' integrated agreement and are "as fully a part of the Contract as if attached to this Agreement or repeated herein." Article 9 separately enumerates "AIA Document A201™-2017, General Conditions of the Contract for Construction" as one of the documents comprising the Agreement. (Su Deel., Ex. A, A101, Art. 1, § 9.1.3.) The A101 identifies the incorporated document by publisher, document number, edition, and title. For arbitration, it also identifies the exact governing section.

As Project X explains, California law does not require an incorporated arbitration provision to be physically attached to the signed agreement. In *Wolschlag v. Fidelity National Title Insurance Co.* (2003) 14 111 Cal.App.4th 784, 790-791, the Court of Appeal enforced an arbitration clause contained in an incorporated title policy even though the insured had not seen either the policy or the arbitration provision before accepting the preliminary report. The court held that the insured's failure to read the incorporated policy did not defeat assent where the incorporating document sufficiently identified it. (Id.) Although the preliminary report in *Wolschlag* stated that copies of the incorporated policy forms were available from the issuing office, the executed A101 presents a more direct manifestation of assent to arbitration. It presents arbitration and litigation as alternatives and records the parties' affirmative selection of arbitration.

Golden State relies on *Brockman v. Kaiser Foundation Hospitals* (2025) 114 CalApp.5th 569, but the case is not on point. There, the enrollment materials referred generally to arbitration provisions contained in separate plan documents, and the defendants did not establish the precise provision to which the plaintiff or her mother had assented. (Id. at p. 585.) The executed A101 is materially different. Section 6.2 expressly selects arbitration, identifies the incorporated document as AIA Document A201-2017, and specifies section 15.4 as the governing provision. Article 9 then enumerates that same A201-2017 as a Contract Document. *Brockman* therefore does not govern the materially different agreement and record presented here.

Here, the executed A101 does not merely incorporate a document that happens to contain an arbitration clause. It expressly identifies arbitration as the selected method of binding dispute resolution, identifies the governing A201 provision by section number, and leaves the litigation alternative unchecked. Matthew Arfa's declaration addresses whether Golden Star received or reviewed a separate copy of the A201. It does not

dispute that Golden Star executed the A101, that section 6.2 expressly selects arbitration, or that Article 9 enumerates the A201 among the Contract Documents. Those objective manifestations of assent control the formation inquiry.

Finally, Golden Star emphasizes that section 8.1 refers to A201 provisions "as amended or supplemented by other provisions of the Contract Documents." That language does not show that section 15.4 was modified. It recognizes only that another Contract Document may amend or supplement an incorporated A201 provision. Golden Star identifies no provision modifying section 14 15, offers no competing version of the A201, and does not contend that the parties selected litigation or another method of binding dispute resolution. The theoretical possibility of an unidentified amendment does not overcome the express arbitration selection recorded in section 6.2.

According, the existence of an agreement to arbitrate is established.

The causes of action fall within the arbitration agreement:

The A201 defines a "Claim" to include disputes between the Owner and Contractor "arising out of or relating to the Contract." (Clough Decl., Ex. A, A201, § 15 .1.1.) It further provides that causes of action arising out of or relating to the Contract, "whether in contract, tort, breach of warranty or otherwise," must proceed under the binding-dispute-resolution method selected in the A101. (Id., § 15.1.2.)

Here, Golden Star's Cross-Complaint falls within that language. Its claims concern alleged promises regarding project completion, the 180-day construction period, progress payments, subcontracting, allegedly defective work, payment of subcontractors and vendors, lien exposure, and responsibility for resulting losses. Those claims cannot be adjudicated without determining the parties' respective rights and obligations under the Contract Documents. Golden Star may not avoid arbitration by assuming tort or statutory labels to a contract-centered controversy. The scope inquiry turns on the substance of the controversy, not the labels assigned to the causes of action. Each claim depends on alleged duties, payments, performance obligations, and project consequences arising from the Contract Documents.

As noted by Project X, Golden Star's Penal Code section 496 claim is equally subject to arbitration. It rests on the same progress payments and alleged failure to use or distribute those payments in accordance with the construction contract. The California Supreme Court has held that section 496(c) may apply in a business dispute when the statutory elements are established. (*Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 361-362.) Whether Golden Star can prove those elements is a merits question. It does not alter the contractual source or factual basis of the controversy. (CCP § § 1281.2 (arbitration may not be refused because the petitioner's contentions lack substantive merit).

Defendant/Cross-Complainant Golden Star Investment Properties, LLC's Evidentiary Objections: OVERRULED.

Defendant/Cross-Defendant Project X Developer, Inc.'s Evidentiary Objections SUSTAINED.

Defendant/Cross-Defendant Project X Developer Inc.'s Motion to Stay Proceedings and Compel Arbitration GRANTED.

The Court stays the pending action, to include Cross-Defendant J&Q Land Development Construction, Inc., to avoid inconsistent adjudication.

The hearing on Cross-Defendant Jay Alan Su's Demurrer to Cross-Complaint of Golden Star Investment Properties, LLC is VACATED due to the pending arbitration.

A status hearing re arbitration is scheduled for 3.23.27, 8:30 a.m. Parties are directed to submit a joint declaration no later than 10 days prior to the status hearing date.

3.

| CASE #      | CASE NAME                                                                    | HEARING NAME                                                                 |
|-------------|------------------------------------------------------------------------------|------------------------------------------------------------------------------|
| CVPS2502853 | J & Q LAND DEVELOPMENT<br>CONSTRUCTION, INC. VS<br>PROJECT X DEVELOPER, INC. | DEMURRER ON CROSS-<br>COMPLAINT OF GOLDEN STAR<br>INVESTMENT PROPERTIES, LLC |

**Tentative Ruling:** Motion is vacated based on the court's ruling on the Motion to Compel Arbitration. Moving party may refile within 10 days of the case returning back to active status if necessary.